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CMA Board Approval: March 12, 2022
Effective date: March 12, 2022

COOLFONT MOUNTAINSIDE ASSOCIATION
POLICY RESOLUTION 2022-01
DELINQUENT WATER & SEWER POLICY

This Policy Resolution supersedes Policy Resolution 2020-02 of the same name, approved in May 2020. It includes information from the revised WV Title 150 Series 7, effective September 14, 2021.

WHEREAS, Title 150 Legislative Rule Public Service Commission, Series 7, Rules for the Government of Water Utilities ("WV 150CSR7") creates an obligation for owners for water and sewer services, empowers the Board of Directors of the Coolfont Mountainside Association Water and Sewer ("CMAWS") to invoice owners for services, and provides guidelines for enforcing the water and sewer obligation against owners by any lawful means;

WHEREAS, WV 150CSR7 Paragraph 6.3.5. establishes the due dates of water and sewer invoices and provides for the imposition of late fees and costs for delinquent invoices; and

WHEREAS, WV 150CSR7 Paragraph 6.8 provides for utility discontinuance of service and service reinstatement costs against a delinquent account and provides alternative ways for the CMAWS to seek the recovery of the above; and

WHEREAS, the CMAWS believes it is in its best interest to adopt uniform procedures for the recovery of delinquent water and sewer accounts;

NOW, THEREFORE, IT IS HEREBY RESOLVED the CMAWS adopts the following Delinquent Water & Sewer Policy:

COOLFONT MOUNTAINSIDE ASSOCIATION
PO BOX 419
BERKELEY SPRINGS WV 25411-0419

I. Invoices in General

A. Each invoice for water and sewer charges shall be due and payable on the date noted on the invoice ("Due Date"). Special/Additional charges related to water and sewer operations that are separately invoiced are due on the date specified on the invoice.

B. All documents, correspondence, and notices relating to water and sewer invoices shall be mailed, emailed, or delivered to the address which is used for invoicing or to such other address as is designated by the lot's owner in writing.

C. Non-receipt of an invoice shall in no way relieve the lot's owner of the obligation to pay the amount due by the Due Date.

D. Any water and sewer invoice, unpaid twenty (20) days following its Due Date shall be considered to be a delinquent invoice.

II. Delinquent Invoices

A. **Personal Obligation**. All delinquent water and sewer invoices for a lot shall immediately become the personal obligation of the owner at the date the water and sewer invoice was issued.

B. **Late Fee.** A late fee equal to ten percent (10%) of the total amount of the delinquent water and sewer invoice (not including previous invoiced or late fees) shall automatically be added to the water and sewer amount due and shall become a part of the personal obligation.

C. **Returned Checks.** If a check used to pay a water and sewer invoice is returned for insufficient funds, that cost or fee charged by the bank shall be added to the delinquent water and sewer balance. If the CMAWS receives, in any calendar year, two or more checks returned for insufficient funds, the CMAWS may require all future payments to be made by certified check, cashier's check, or money order.

D. **Late Notice.** A "Late Notice" may be sent monthly by the CMAWS to owners with delinquent water and sewer accounts. The Late Notice will advise the owner that the delinquent water and sewer account has or is incurring late fees and that this may result in a Termination of Service and/or be sent to legal counsel for legal proceedings. All costs incurred by the CMAWS to prepare and send a Late Notice shall be added to the delinquent assessment account.

E. **Termination of Service.** Water and sewer accounts more than ninety (90) days past due or accounts that exceed $300.00 after the Due Date may be subject to termination of service in accordance with WV 150CSR7 para 6.8. Specifically:

    a. Owner shall be sent a *Notice of Scheduled Termination of Service and Customer Rights* to the address on record, by USPS mail at least ten (10) days prior to service termination to the address on record with address service requested.

    b. CMAWS will attempt to notify the Owner by phone or in person on two separate business days at least 24 hours prior to scheduled termination. The inability to make personal contact shall not prevent termination of service.

    c. If service is terminated, owner will be subject to a reconnection fee as defined in the current tariff for CMAWS.

    d. Owner may request entering into a deferred payment agreement ("Payment Plan").

F. **Payment Plans**. Any time the lot owner contacts the CMAWS, in writing or via email, and expresses a desire to pay the delinquent water and sewer balance, but is unable to do

so in a single payment, the utility may consider any payment plan proposed by the lot owner, provided that such payment plan does not exceed twelve (12) months in length ("plan period") and addresses both payment of the delinquent water and sewer balance and the ongoing future invoices. The CMAWS is not obligated or required to accept the terms offered by any lot owner. Additionally, the CMAWS may reject or negotiate an alternative settlement and may take into consideration the amount of time that has lapsed, the circumstances surrounding the delinquency, and the likelihood of future compliance. All payment plans or settlements shall be represented by a formal written agreement exchanged between and signed by the parties.

G. **Application of Payments.** Payments received for delinquent water and sewer accounts shall be applied in the following order unless a written agreement to the contrary is reached with the owner

   a. Past Due Account: Unpaid invoices and late fees, newest to oldest

   b. Payment Plan: Unpaid invoices and late fees, oldest to newest

   c. Termination of Service: Unpaid invoices and late fees that prompted the Termination of Service, then current invoice

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RESOLUTION ACTION RECORD

Duly adopted at a meeting of the Board of Directors held on: March 12, 2022

Motion by: Dawne Holz Seconded by: Eric Lienhard

Title, Name	**For**	**Against**	**Abstain**	**Absent**
President, Steve Katz	____X___	_____	_____	_____
Vice President, Eric Lienhard	____X___	_____	_____	_____
Treasurer, Dawne Holz	____X___	_____	_____	_____
Secretary, Susan Betts	____X___	_____	_____	_____
Director, Lisa Johnson	____X___	_____	_____	_____
Director, Travis Martz	____X___	_____	_____	_____
Director, Cindy Van Meter	____X___	_____	_____	_____

ATTEST:

Resolution effective date: March 12, 2022

Susan Betts
_____
Secretary

3/18/2022
_____
Date